

CARDIFF
UNIVERSITY

PRIFYSGOL
CAERDYDD

Academic misconduct procedure for students on taught programmes

1. Introduction

- 1.1 This procedure applies to all students on undergraduate and postgraduate taught programmes at Cardiff University, including the MRes, students registered on the taught elements of professional doctorates.

2. Stage 1 - Consideration of the allegations/concerns

- 2.1 Action will be taken when there is a concern about any academic misconduct.
- 2.2 Where there is a concern about academic misconduct, a report, with evidence, will be submitted to the School's Academic Misconduct Co-ordinator who will, if appropriate, initiate an investigation.

.1 **Coursework:** where summative coursework assessments are submitted via Turnitin, an originality report is produced. In other cases, a report regarding similarity will either be prepared by the subject area system software or by a member of academic staff. This report will be considered by academic staff as part of the investigation to assess whether your referencing is correct, the words/text you have used are your own and/or there are concerns about other types of breaches of the procedure. Academic staff will not only rely on software applications: they will also use their own academic judgement in consideration of any academic misconduct cases.

.2 **Examination/ Class Test:** where it is alleged that a student cheated during an examination, the invigilator's report and evidence will be submitted to the Academic Misconduct Co-ordinator who will liaise with the module leader to assess the relevance of the information to the syllabus of the examination being taken and/or the extent of the breach of the rules.

You will be allowed to continue with the examination and any other planned examinations, but the invigilator will mark the answer paper with the time of the alleged misconduct. In exceptional circumstances, you may not be informed at the time of the exam that an invigilator's report is being made, e.g. if you have left the examination room before the concern is noted.

The invigilator may confiscate and/or photograph any evidence which is in your possession and this will form part of the Senior Invigilator's report.

.3 **Other Academic Misconduct:** if a member of staff has a concern about your work or the assessment task, they will report this to the Academic Misconduct Co-ordinator who may make initial enquiries to establish if the case requires formal investigation.

Investigation meeting

- 2.3 For all types of concerns about academic misconduct, the Academic Misconduct Co-ordinator will assess the case and ask to meet with you to discuss the concern. You will be provided with a copy of the evidence or reports at least 7 days in advance of this meeting. Students will be given **14 days'** notice of investigation meetings.
- 2.4 Within **7 days**, you should respond and agree to attend the meeting or provide a written response. You can ask a member of the Students' Union Student Advice or professional union representative to attend the meeting with you for support but you will need to arrange representation. You will be asked and expected to respond to questions yourself, but your representative can help you to summarise your response and any mitigating factors.
- 2.5 If you do not respond to the meeting invitation, or provide a written response, the concern will be considered without your comments being available.
- 2.6 The Academic Misconduct Co-ordinator will keep a record of the meeting and pass this and any work/reports/evidence to the Chair of the relevant Examining Board. You will also receive a copy. If the Academic Misconduct Co-ordinator does not consider there is an academic misconduct case it will be dismissed and they will inform you.
- 2.7 If you want to dispute the concern at this stage and/or if you have comments about the content of the meeting record, you have **7 days** to send a response directly to the Chair of the relevant Examining Board.

Consideration of the concern/allegation

- 2.8 The Chair of the Examining Board will consider the concern, the meeting record and evidence, and your written response (if provided in the timescale) and will take into account:
- .1 The extent and nature of the concern and whether the case of misconduct is proven or should be dismissed;
 - .2 If the Chair believes unfair practice has taken place, the Academic Misconduct Co-ordinator will advise them whether there have been any previous concerns;
 - .3 The level of study;
 - .4 Whether there are serious personal circumstances or mitigating factors for which you have provided evidence and, on the balance of probabilities, the extent (if any) to which they are likely to have impacted on your judgement.
- 2.9 The Chair of the Examining Board's decision will be made on the balance of probabilities. It is a two stage decision: (i) has academic misconduct taken

place and, if so (ii) the sanction/s that will be imposed. The Chair will make one or more of the following decisions:

- .1 Dismiss the concern. At the Chair's discretion study skills can be recommended to support your learning;
 - .2 Require you to complete study skills session/s and advise of consequences of any future concerns (the study skills session/s may be provided online or in person);
 - .3 Award a mark of 0 for the assessment and require you to complete study skills session/s and advise of consequences of any future concerns (the study skills session/s may be provided online or in person);
 - .4 Award a mark of 0 for the module and require you to complete study skills session/s and advise of consequences of any future concerns (the study skills session/s may be provided online or in person);
 - .5 Refer to the University Academic Integrity Panel who will normally meet within **42 days** of the referral being made. Information about the panel is detailed below.
 - .6 Refer you to other University procedures if relevant, e.g. Fitness to Practise, Student or Staff Conduct Procedures.
 - .7 Impose a formal warning and advise of the consequences of any future concerns.
- 2.10 The Chair of the Examining Board may refer the case to the University Academic Integrity Panel (Stage 2) where they have decided that academic misconduct has occurred and either of the following circumstances are present:
- The Chair has decided that the sanctions available to them are not sufficient;
 - There are exceptional and serious personal circumstances which have been reported to the Chair with evidence and the Chair has decided that an Academic Integrity Panel should decide whether you should be given a further, unincremented attempt, at an assessment marked to zero.
- 2.11 The Chair of the Examining Board will confirm their decision to you, in writing, within 7 days of the decision. If a penalty is applied, you will also be informed of how you can challenge that decision under the Review Procedure.
- 2.12 If a penalty is applied, a note will be placed on your academic record for the period of your registration, so that this may be considered in any possible future suspected incidents. In the event of future incidents, they will be considered as more serious than a first incident.

3. Stage 2 - University Academic Integrity Panel

- 3.1 The panel will be made up of 3 members of academic staff who have been trained in the use of this procedure. An academic member of staff will act as Chair and all panel members will be from outside of your School.
- 3.2 The Head of Registry will nominate a member of Student Cases staff to act as secretary and to convene the panel.
- 3.3 At least **14 days** before the date of the panel, the secretary will:
 - .1 Inform you of the allegation;
 - .2 Supply copies of documentation to be considered by the panel and say if witnesses will be called;
 - .3 Provide the date, time, and venue of the panel meeting and ask if you would like the panel conducted through the medium of English or Welsh.
- 3.4 You must reply within **7 days** if you intend to attend. You must send any additional information and the names of witnesses you intend to call and/or the name of anyone who will accompany you, which could be a member of the Students' Union Student Advice team or relevant union (e.g. BMA).

Your role: to submit a statement or evidence before the panel date if you choose to, to attend the panel, and to be accompanied by a member of the Students' Union Student Advice Team or a professional union representative, or friend. You will need to make arrangements with the representative.

If relevant, you may bring a witness to the panel, but you must notify the secretary of the name of any witness.

You can request to attend via video or telephone link if you are unable to attend in person.

If you do not reply within the expected time, do not attend the panel, and all reasonable efforts have been made to contact you, the panel may proceed in your absence.

- 3.5 The Secretary will notify the panel members of the details meeting and send them the documentation to be considered, along with any representations or evidence you present by you at least **7 days** in advance of the meeting.
- 3.6 The panel will:
 - .1 Consider the available evidence;
 - .2 Determine whether or not the allegation is substantiated;
 - .3 If the allegation is substantiated, determine the penalty that should be imposed, taking into account any mitigating factors.

The sanction will be proportionate to the case being considered and will take into account any previous substantiated cases of academic misconduct.

- 3.7 If the case involves 2 students, they may be heard at the same time and by the same panel, unless the students request their cases to be heard separately.

Where a panel considers 2 (or more) students together, each student will be given the independent opportunity to provide the committee with evidence of mitigating factors, confidentially, unless the mitigation makes allegations against the other student(s) involved.

Conduct of the Panel

- 3.8 The Chair of the Examining Board/Academic Misconduct Investigator (or nominee) will present the concerns for the panel and bring witnesses, if appropriate. The panel and you (or your representative) may ask questions of the Chair, the Investigating Officer, and the witnesses.
- 3.9 You will have the opportunity to give evidence and call witnesses. The panel members and the Investigating Officer may ask questions of you and any witnesses. It is your responsibility to notify the witnesses of the arrangements for the panel meeting and ensure that they are available to attend.

You will have a final opportunity to make any additional comments.

- 3.10 The panel will then withdraw to consider all the evidence and make a decision about the case and any penalty that may be appropriate and proportionate.

The panel will try to provide the decision to you on the day of panel meeting. If this is not possible, the outcome will be sent to the student in writing within **7 days** of the panel meeting.

- 3.11 If the allegation is not substantiated, the panel will dismiss the concern.

- 3.12 If the allegation is substantiated, the sanctions available to the panel are:

- .1 Require you to complete study skills session/s and advise of consequences of any further concerns (the study skills session may be provided online or in person);
- .2 Impose a formal warning and advise of the consequences of any future concerns.
- .3 Award a mark of 0 for the assessment component or module and require you to complete study skills session/s and advise of consequences of any future concerns (the study skills session/s may be provided online or in person);

- .4 In exceptional circumstances, where the mitigating circumstances warrant this, you may be permitted a further attempt at the assessment with the mark to be either uncapped or capped despite receiving a mark of zero for the assessment/module. If this sanction is imposed and the assessment impacted by academic misconduct was your first attempt, the re-sit would not be capped at the pass mark. If the assessment impacted by academic misconduct was your second or subsequent attempt, your further attempt would be capped but the attempt number would not be incremented;
 - .5 Require you to be reassessed in a module or unit of study before progression or completion of your programme of study;
 - .6 Recommend to the Academic Registrar that you are excluded temporarily for a specified period of up to 1 academic year;
 - .7 Recommend to the Vice-Chancellor a reduction of the degree result by 1 level/class;
 - .8 Recommend to the Vice-Chancellor that you are excluded from the programme, from University study, and from all future examinations for a fixed number of years or permanently;
 - .9 Recommend to Awards and Progress Committee and Senate that the award of the degree be rescinded.
- 3.13 If a penalty is applied, a note will be placed on your academic record for the period of your registration, so that this may be considered in any possible future suspected incidents. In the event of future incidents, they will be considered as more serious than a first incident.

Following the Academic Misconduct Panel

- 3.14 The decision of the panel and how to request a review of the decision will be communicated to you in writing by the secretary within 7 days of the panel meeting.
- 3.15 Where the panel considers that use of another University procedure is appropriate, (e.g. Academic Progress Monitoring Procedures, Student Conduct, Fitness to Practise), the Chair of the panel will refer the case to the Head of Student Cases outlining the reasons for that recommendation.
- 3.16 The Examining Board will note the decision of the panel and will consider the impact of the decision on your progress/award and take the steps to release or amend results as appropriate.

4. Cases that Emerge Post-Award

- 4.1 Where a complaint is received about the integrity of an assessment after a degree has been awarded by Cardiff University, the relevant Head of School

will conduct an investigation and submit a report and recommendation to the Awards and Progress Committee.

5. Request for Review

- 5.1 You will be informed of your right to request a review of the decision under the [University Review Procedure](#). A request for review must be made on one or more of the grounds set out in the Procedure and must be received by Student Cases **within 14 days** of you being sent the outcome.